We've acquired Monarch Medical Technologies, creator of the EndoTool Glucose Management System Learn more

SOLUTIONS PARTNERS COMPANY RESOURCES LOGIN

Glooko's Privacy Notice

Effective Date: September 19, 2024

Languages

Arabic Čeština Dansk Deutsch Elliniká Español Français Français (Canada) Italiano Magyar Nederlands Norsk Polska Português Slovaki Suomi Svenska

1. **Introduction**
   1. We commit to safeguarding the privacy of our website visitors and users of the Glooko® products and services, including but not limited to the mobile application and web portals (collectively, the "Services").
   2. We provide the Services in the United States (through Glooko, Inc.) and in Europe (through Glooko AB), and are collectively referred to as "Glooko". For data processing for the Glooko services outside of the U.S. and Canada, Glooko AB is the Data Controller.
   3. In Europe, this notice applies where we are acting as a "Data Controller" with respect to the personal data processed through the use of our Services; in other words, where we determine the purposes and means of the processing of that personal data as part of our offering.
   4. In this notice, "we", "us" and "our" refer to Glooko.
   5. In this notice, "you" and "your" may refer to you as the user of our Services that result in our processing of your personal data.
   6. See section 24. "Notice to California residents" for protections specific to California residents using Glooko® services.

2. **How we use your Personal Data**
   1. In this Section we have included:
   (a) the general categories of personal data that we may process;
   (b) in the case of personal data that we did not obtain directly from you, the source and specific categories of that data;
   © the purposes for which we may process personal data; and
   (d) the legal bases of the processing.
   2. We may process your personal data provided in the course of the use of our Services (" Service Data "). The Service Data may include name, email address, gender, date of birth, biometric data and health data and any other submitted or uploaded information. The source of the Service Data is you or your healthcare provider including device, activity, food or health data you share with our Services, such as from blood glucose meters, fitness trackers, or third-party services. The Service Data may be processed for the purposes of providing our

Services, analyzing the use of our Services for product development, informing you about product news, informing you about product issues, providing information we believe is of interest to you and communicating with you. If you are a private person signing up directly to our Services, the legal basis is your consent. If you are a data controller representing data subjects, the legal basis for our processing is legitimate interest.
3. We may process personally identifiable data about your use of the Services (“ Usage Data ”). The Usage Data may include your IP address, geographical location, browser type and version, device make and model, operating system, referral source, length of visit, page views and navigation paths, as well as information about the timing, frequency and pattern of your service use. Usage Data is captured by our analytics tracking systems, which includes the use of cookies (see https://glooko.com/cookie-policy/). Usage Data may be processed for the purpose of analyzing the use and troubleshooting of the Services. The legal basis for this processing is our legitimate interests, namely monitoring and improving our Services.
4. We may process personally identifiable data in our monitoring of network traffic of our Services (“ Traffic Data ”). The Traffic Data may include your IP address, browser type and version, operating system, and referral source. Traffic Data may be processed for the purposes of analyzing the use and troubleshooting of the Services. The legal basis for this processing is our legitimate interests, namely monitoring and improving our Services.
5. We may process access information (“ Audit Log Data ”) regarding who has accessed and processed your Service Data and any access or processing you have made to other people’s Service Data. The Audit Log Data may include identification of the data subject, who has accessed the Service Data, when it was accessed, how it was accessed, and changes to Service Data. Audit Log Data may be processed for the purposes of allowing investigations to be performed regarding who has accessed your and other people’s personal data. The legal basis for this processing is legal requirements, which includes but is not limited to the Health Insurance Portability and Accountability Act of 1996 (HIPAA) and the Swedish Patient Data Law (2008:355).
6. We may process your business-related account data (“ Business Account Data ”). Business Account Data may include your name, email address and any other submitted information. The source of the Business Account Data is you, your employer or an industry partner of yours. The Business Account Data may be processed for the purposes of providing our Services, ensuring the security of our Services, maintaining back-ups of our databases and communicating with you. For the processing to establish or maintain a business relationship, the legal basis for this processing is legitimate interest.
7. We may process information contained in any inquiry you submit to us regarding our goods and/or Services (“ Inquiry Data ”) via our Services. Inquiry Data may be processed for the purposes of offering, marketing and selling relevant goods and/or services to you. The legal basis for this processing is legitimate interest to fulfil your inquiry.
8. We may process information relating to transactions, including purchases of goods and Services, that you enter into with us and/or through the Services (“ Transaction Data ”). Transaction Data may include your contact details, your payment details and the transaction details. Transaction Data may be processed for the purpose of supplying the purchased goods and Services and keeping proper records of those transactions. The legal basis for this processing is the performance of a contract between you and us and/or taking steps, at your request, to enter into such a contract and legal requirements for proper accounting.
9. We may process information that you provide to us for the purpose of subscribing to our email notifications and/or newsletters (“ Notification Data ”). Notification Data may be processed for the purpose of sending you the relevant notifications and/or newsletters. The legal basis for this processing is your consent.
10. We may process information contained in or relating to any communication that you send to us (“ Correspondence Data ”). Correspondence Data may include the communication content and metadata associated with the communication. Correspondence Data may be processed for the purposes of communicating with you and record-keeping, e.g. for technical support or accounting purposes. Further, when

you seek technical support from us, you understand and acknowledge that the individual(s) providing you with support may need to access your Service Data and Usage Data in order to diagnose the problem you are seeking support for; in this case, this information will only be used to help provide you with support. The legal basis for this processing is our legitimate interests, namely the proper administration of our business and communications with users, which we believe will benefit you.

11. We may process information about you for keeping records of incidents or complaints (" Regulatory Data "). Regulatory Data may be processed for the purposes of establishing internal reports and records that may be made available to authorities upon their request. The legal basis for this processing is legal requirements, specifically the Medical Device Regulation in the EU and the FDA in the United States, as well as similar governing bodies in the other countries Glooko operates in.

12. We may process your personal data you provide to us when you submit feedback to Glooko about our services (" Feedback Data "). The Feedback Data may include name, age and any information uploaded by you. The source of the Feedback Data is you. Feedback Data may be processed in marketing material and for publishing on our social channels such as Facebook, LinkedIn, Twitter and Instagram. The legal basis for this processing is your consent.

13. We may process any of your personal data identified in this notice where necessary for the establishment, exercise or defense of legal claims, whether in court proceedings or in an administrative or out-of-court procedure. The legal basis for this processing is our legitimate interests, namely the protection and assertion of our legal rights, your legal rights and the legal rights of others.

14. We may process any of your personal data identified in this notice where necessary for the purposes of the protection of yours or others' personal data. The legal basis for this processing is our legitimate interests, namely the protection and assertion of our legal rights, your legal rights and the legal rights of others.

15. In addition to the specific purposes for which we may process your personal data outlined in this Section 2, we may also process any of your personal data where such processing is necessary for compliance with a legal obligation to which we are subject, or in order to protect your vital interests or the vital interests of another natural person.

3. **Automated decision-making**

1. We or our Services may automate parts of decision-making processes.

2. Decision making processes may analyze your personal data to determine whether or not you or your experience in the Services will be subject to, but is not limited to, personalized reports, features, alerts, notifications, and invites to product testing.

3. Decision making processes may analyze your personal data to determine whether or not you will be subject to personalized marketing of products, features, events and services that we believe may be of interest to you.

4. **Providing your personal data to others**

1. Glooko's policy is to avoid disclosing your personal data to others. We will protect and consider your interests at all times. In some cases, listed below, we may nevertheless disclose your personal data.

2. We may disclose your personal data to any member of our group of companies (this means our subsidiaries, our ultimate holding company and all its subsidiaries) insofar as reasonably necessary for the purposes, and on the legal bases, set out in this notice.

3. We may disclose your Service Data to your healthcare provider when your diabetes devices are synced at your healthcare provider's office, during your appointments.

4. We may disclose your personal data to our suppliers or subcontractors insofar as reasonably necessary in order to provide the Services. However, Service Data enjoys additional restrictions and may not be disclosed to any such third-party suppliers or contractors unless pseudonymized, e.g. encrypted by a security key managed by, and only by, Glooko.

5. We may disclose your Inquiry Data to our service providers for the purpose of enabling them to deliver services to us so that we can offer, market and sell you relevant goods and/or services.
6. We may disclose your personal data to third parties to which you have chosen, at your sole discretion, to share your personal data. We will not share this data to any third-party applications without your consent. Once your data has been shared at your discretion to a third-party application, we no longer control the use of, access to, or disclosure of that data from that application, so you should understand the terms of use and privacy policies for any third party applications prior to opting in and consenting to share data with them.
7. In addition to the specific disclosures of personal data set out in this Section 4, we may disclose your personal data where such disclosure is necessary for compliance with a legal obligation to which we are subject, or in order to protect your vital interests or the vital interests of another natural person. We may also disclose your personal data where such disclosure is necessary for the establishment, exercise or defense of legal claims, whether in court proceedings or in an administrative or out-of-court procedure.

5. **International transfers of your personal data (United States)**
1. If you are using services provided by Glooko, Inc. and you are located within the United States, your Service Data is stored in United States.
2. We have offices and facilities in United States, Croatia and Sweden. We may transfer your personal data to any of these countries for the purposes of providing customer and technical support which may include Inquiry Data, Service Data and Correspondence Data, as well as to comply with Regulatory requirements.

6. **International transfers of your personal data (Europe, the UK and GDPR)**
1. If you are a located outside of the US and Canada, you are using services provided by Glooko AB, your personal data is stored within the EEA and is protected by the General Data Protection Regulation.
2. We have offices and facilities in the United States, Croatia and Sweden. We may transfer your personal data to any of these countries for the purposes of providing customer and technical support which may include Inquiry Data, Service Data and Correspondence Data, as well as to comply with Regulatory requirements. Any international transfer of personal data between our locations will be protected by appropriate safeguards, including the use of standard contractual clauses adopted or approved by the European Commission and our Data Privacy Framework certification outlined here: www.glooko.com/DataPrivacyFramework.
3. We use service providers in order to deliver different elements of the Services. Some of these service providers are located outside of the EEA. Any international transfers of personal data will be protected by appropriate safeguards, namely the use of standard contractual clauses adopted or approved by the European Commission, an adequacy decision by the European Commission or Binding Corporate Rules, such provider's Data Privacy Framework certification, or your explicit consent.

7. **Retaining and deleting personal data**
1. This Section outlines our data retention policies and procedures.
2. Personal data that we process for any purpose(s) shall not be kept for longer than is necessary for that purpose(s).
3. We will retain your personal data as follows:
(a) Service Data will be retained during the period for which you have a valid Service account with us, and for a maximum period of 30 days following termination of your Service account.
(b) Usage Data will be retained during the period for which you have a valid Service account with us, and for a maximum period of 30 days following termination of your Service account.
© Traffic Data will be retained for a maximum period of 30 days following the creation of such data.
(d) Audit Log Data will be retained for the maximum period required by applicable law following the creation of such data.
(e) Business Account Data will be retained during the period where there is an active business relationship

between you and Glooko, and for a maximum period of 12 months following the termination of such business relationship.
(f) Inquiry Data will be retained until the inquiry has been resolved, and for a maximum period of 24 months following the resolution of the most recent inquiry from you.
(g) Transaction Data will be retained for a minimum of 7 years following the end of the year for which the transaction was performed, and for a maximum period of 1 year following the end of said 7 year period.
(h) Notification Data will be retained during the period for which you have a valid Service account with us and/or you have elected to allow such processing. Should you withdraw your consent and object to such processing, Notification Data will be retained for a maximum period of 30 days following the date of your request.
(i) Correspondence Data will be retained until the inquiry has been resolved, and for a maximum period of 24 months following the resolution of the most recent inquiry from you or following the end of our relationship (e.g. service contract), whichever is latest.
(j) Regulatory Data will be retained for 10 years after the last production date of the product in question, and for a maximum period of 12 months following the end of said 10-year period.
4. Notwithstanding the other provisions of this Section, we may retain your personal data for a longer period where such retention is necessary for compliance with a legal obligation to which we are subject, or in order to protect your vital interests or the vital interests of another natural person.

8. **Security of personal data**
1. We will take appropriate technical and organizational precautions to secure your personal data and to prevent the loss, misuse or alteration of your personal data.
2. We will store all your personal data on secure servers.
3. All personal data stored electronically will be stored by us in encrypted form.
4. Transactions that are sent to and from your client, e.g. computer or mobile app, are protected by encryption technology.
5. You should ensure that your password(s) of our Services is not susceptible to being guessed, whether by a person or a computer program. You are responsible for keeping the password you use for accessing our Services confidential. We will not ask you for your password (except when you log in to our Services).

9. **Amendments**
1. We may update this notice from time to time by publishing a new version on our website at https://glooko.com/privacy.
2. We may notify you of changes to this notice by email, through a (private or public) messaging system or on our website.

10. **Your rights**
1. In this Section, we have summarized the rights that you have under data protection laws. Some of the rights are complex, and not all of the details have been included in our summary. Accordingly, you should read the relevant laws and guidance from the regulatory authorities for a full explanation of these rights.
2. Your principal rights under data protection law are:
(a) the right to request access;
(b) the right to request rectification;
© the right to request erasure;
(d) the right to request the restriction of the processing;
(e) the right to object to processing;
(f) the right to data portability;
(g) the right to complain to a supervisory authority; and

(h) the right to withdraw consent.

3. **Access**: You have the right to confirmation from us as to whether or not we process your personal data and, where we do, access that personal data, together with certain additional information. That additional information includes details of the purposes of the processing, the categories of personal data concerned and the recipients of the personal data. Providing that the rights and freedoms of others are not affected, upon request, we will supply to you a copy of your personal data. The first copy will be provided free of charge, but additional copies may be subject to a reasonable fee. Provision of such information will be subject to the supply of appropriate evidence of your identity. You can access your Service Data by logging into our Services and we may direct you there as a response to such request.

4. **Rectification**: You have the right to have any inaccurate personal data about you rectified and, taking into account the purposes of the processing, to have any incomplete personal data about you completed.

5. **Erasure**: In some circumstances you have the right to request the erasure of your personal data without undue delay. Those circumstances include: the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed; you withdraw consent to consent-based processing; you object to the processing under certain rules of applicable data protection law; the processing is for direct marketing purposes; and the personal data have been unlawfully processed. However, there are exclusions of the right to erasure. The general exclusions include where processing is necessary: for exercising the right of freedom of expression and information; for compliance with a legal or regulatory obligation; or for the establishment, exercise or defense of legal claims.

6. **Restricted Processing**: In some circumstances you have the right to request the restriction of the processing of your personal data. Those circumstances are: you contest the accuracy of the personal data; processing is unlawful but you oppose erasure; we no longer need the personal data for the purposes of our processing, but you require personal data for the establishment, exercise or defense of legal claims; and you have objected to processing, pending the verification of that objection. Where processing has been restricted on this basis, we may continue to store your personal data. However, we will only otherwise process it: with your consent; for the establishment, exercise or defense of legal claims; for the protection of the rights of another natural or legal person; or for reasons of important public interest.

7. **Objection to Processing**: You have the right to object to our processing of your personal data on grounds relating to your particular situation, but only to the extent that the legal basis for the processing is that the processing is necessary for any of the following: the performance of a task carried out in the public interest or in the exercise of any official authority vested in us; or the purposes of the legitimate interests pursued by us or by a third party. If you make such an objection, we will cease to process the personal information unless we can demonstrate compelling legitimate grounds for the processing which override your interests, rights and freedoms, or the processing is for the establishment, exercise or defense of legal claims.

8. **Direct Marketing**: You have the right to object to our processing of your personal data for direct marketing purposes (including profiling for direct marketing purposes). If you make such an objection, we will cease to process your personal data for this purpose.

9. **Data Portability**: To the extent that the legal basis for our processing of your personal data is: (a) your consent; or (b) that the processing is necessary for the performance of a contract to which you are party or in order to take steps at your request prior to entering into a contract, and such processing is carried out by automated means, you have the right to receive your personal data from us in a structured, commonly used and machine-readable format. However, this right does not apply where it would adversely affect the rights and freedoms of others.

10. **Complaints to a Supervisory Authority**: If you consider that our processing of your personal information infringes data protection laws, you have a legal right to lodge a complaint with a supervisory authority responsible for data protection. You may do so in the country of your habitual residence, your place of work or

the place of the alleged infringement.
11. **Withdrawal of Consent**: To the extent that the legal basis for our processing of your personal information is your consent, you have the right to withdraw that consent at any time. Withdrawal will not affect the lawfulness of processing before the withdrawal.
12. You may exercise any of your rights in relation to your personal data by written notice to us. See Section 20 for contact details.

1. **Third party websites**
   1. Our website and Services can include hyperlinks to, and details of, third party websites.
   2. We have no control over, and are not responsible for, the privacy policies and practices of third parties.

2. **Personal data of children**
   1. Our Services are targeted at persons of all ages.
   2. For children younger than 18 years, a parent's or legal guardian's consent is required in order to use our Services. If we have reason to believe that we hold personal data of a person under the age of 18 in our databases without the appropriate consents, we may delete that personal data.

3. **Updating information**
   1. For Service Data, you have the ability to have your personal data corrected yourself by logging into our Services or having your care provider do it for you.

4. **Acting as a data processor**
   1. In cases where we do not act as a data controller, but instead we act as a data processor, this notice shall not apply. Our legal obligations as a data processor are instead set out in the data processing agreement between us and the relevant Data Controller.

5. **Use of cookies**
   To learn about our use of cookies, please see our policy located here: https://glooko.com/cookie-policy/

6. **Location Service for Android Users**
   1. You may choose to enable the Bluetooth Low Energy (BLE) syncing feature in the mobile app in order to background sync your device while the app is closed and to eliminate the need for manual syncing. BLE syncing collects your device and health data from the connected device. The Android version of the mobile app Service requires you to grant location permission in order to sync with BLE supported devices. Your location data will also be collected in order to enable BLE syncing. We do not store or use location data generated by your use of the BLE syncing feature.

7. **Glooko's right to processing of anonymized data**
   1. By submitting your personal data to us, we may permanently anonymize the personal data and use it for statistical analysis, clinical research, demographic analysis, profiling of user behaviors within the application and characteristics and to measure interest in and management of physical conditions and similar processing. Permanently anonymized data does not constitute personally identifiable information and is therefore not traceable back to you. Permanently anonymized data may be exported to any country in or outside the European Union, USA or elsewhere.

8. **Our details**
   1. The entities providing the Services are registered in:
   (a) United States as Glooko, Inc. and the registered office is at 579 University Avenue, Palo Alto, CA 94301, USA; and
   (b) Sweden as Glooko AB under registration number 556668-4675 and the registered office is at Nellickevägen

20, 412 63 Göteborg, Sweden.
2. Our principal place of business is Glooko, Inc.'s registered office.
3. You can contact us:
(a) by post, to the postal address given above;
(b) using our website (available at https://support.glooko.com/) and Service contact forms;
© by telephone, on the contact number published on our website from time to time; or
(d) by email, using the email address published on our website. For privacy related matters, you may email privacy@glooko.com.

9. **Representative within the European Union**
1. Glooko, Inc.'s representative within the European Union with respect to its obligations under GDPR data protection law is Glooko AB.

10. **Data Protection Officer**
1. Our data protection officer can be reached at:
Bird & Bird Privacy Solutions
Bird & Bird DPO Services SRL
Avenue Louise 235 Box 1
1050 Brussels
Belgium
dpo@glooko.com

11. **Notice to California residents**
1. The California Consumer Privacy Act (CCPA) has specific protections for the personal data of California residents. Notices regarding these protections are included in this section.
2. Categories of personal information collected and/or disclosed by Glooko include those identified above in this privacy notice. Glooko is obligated to hold personal health information confidential under the California Confidentiality of Medical Information Act (CMIA). We do not "sell" personal information as defined under the CCPA.
3. California consumers have the right to request disclosure regarding the personal information ("PI") that a business has collected about the consumer, as well as any business sale of her or his PI.
4. California consumers have a right not to be discriminated against for exercising any rights under CCPA.
5. California consumers may request deletion of their personal data. If Glooko holds your personal data on behalf of a clinic that uses Glooko services to help patients manage their diabetes, then please work through your clinic for deletion.
6. California consumers can direct requests or inquiries to privacy@glooko.com.
7. An "Authorized agent" as defined by CCPA can make a request on a person's behalf, in accordance with CCPA regulations and guidelines.
Thank you for taking the time to read our Privacy Notice.
Should you have any questions or concerns, don't hesitate to contact us.

Healthcare Providers
Hospitals & Health Systems
People with Diabetes
Device Compatibility

About Us
Media Center
Contact Us
Customer Support

GET IT ON Google Play
Download on the App Store

Not all products available in all countries. Please contact your local Glooko representative for more information.

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